

POLICY OWNER CERTIFICATION

_____ does hereby certify as follows:

[Note: Two Alternate Versions of Paragraph 1. Use first certification where incoming policy is owned by natural person(s), second certification for incoming policy owned by non-natural persons]

[1. I am the owner of [annuity] [life insurance] policy number _____ [insert identification number of existing policy] issued by _____ [insert name of carrier issuing existing policy] (the “Existing Policy”).]

[1. I am _____ [insert office held by signer on behalf of entity owning existing policy], a _____ [insert type of entity that owns existing policy and its jurisdiction of formation (e.g., a Delaware trust)] (the “Owner”) that owns [annuity] [life insurance] policy number _____ [insert identification number of existing policy] issued by _____ [insert name of carrier issuing existing policy] (the “Existing Policy”) and am authorized to make the certifications set forth herein on behalf of the Owner.]

2. [I have] [The Owner has] requested that Axcelus Financial Life Insurance Company (“Axcelus Financial”) issue [a variable annuity] [a variable life insurance] contract to [me] [the Owner] in exchange for the Existing Policy (the “Exchange”). It is [my] [the Owner’s] intent that the Exchange qualify for tax-free treatment under Section 1035 of the Internal Revenue Code of 1986, as amended (the “Code”).

3. I understand that Axcelus Financial requires this certification from [me] [the Owner] as a condition of Axcelus Financial’s participation in the Exchange, that Axcelus Financial will rely, in part, upon the certifications set forth herein in determining whether to participate in the Exchange and that, absent receipt of the certifications set forth herein from [me] [the Owner], Axcelus Financial would decline to participate in the Exchange.

4. I certify that the Existing Policy has at all times complied with the diversification requirements imposed under Section 817(h) of the Code and U.S. Treasury Regulation Section 1.817-5.

5. I certify that, at all times that [I have] [the Owner has] owned the Existing Policy, neither [I nor my] [the Owner nor its] representatives or agents has taken or participated in any action that would cause [me] [the Owner] to be deemed, for U.S. federal income tax purposes, the owner of any assets held for the benefit of the Existing Policy.

6. I acknowledge that Axcelus Financial has advised me to seek independent legal and/or tax advice from qualified advisors to the extent that I have any questions with respect to the import of the certifications set forth herein.

IN WITNESS WHEREOF, I have signed this Certification [on behalf of the Owner] this ____

day of _____, 20__.

[Name]

[Title] [if signing for entity Owner]